

[doc. web n. 9910270]
Provision of June 22, 2023
Register of provisions
n. 265 of June 22, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by
Prof. Pasquale Stanzione, president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members,
and Dr. Claudio Filippi, deputy secretary
general;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD to the Code regarding the protection of personal data, containing provisions for the
adaptation
of the national legal system to Regulation (EU)
2016/679 (Legislative Decree No. 196 of June 30, 2003, as
amended by Legislative Decree No. 101 of August 10, 2018, hereinafter "Code");

HAVING REGARD to the complaint submitted, pursuant to Article 77
of the Regulation, to the Guarantor and regularized on April 5, 2022, by which Mr. XX and Ms. XX, in
their capacity as parents of the minor - at the time of
the events and the submission of the complaint - XX,
represented by Attorney XX, requested to
prohibit More News cooperative society, as
the manager of the online publication
www.torinooggi.it, from further processing or
anonymizing the personal data related to
the same contained within an article
published on XX - titled, moreover, deemed
offensive, "XX" – in which there were two
photographs depicting her near the Carabinieri checkpoint, in addition to a video in
which it was evident "the (...) discomfort and the (...) attempts not to be recognized by lowering and
turning her face," also considering the fact that
her parents were unaware of
this circumstance;

CONSIDERING that the interested party has, in particular, noted:
that the aforementioned publication has led to her
identifiability by friends and acquaintances, causing her severe embarrassment also in
consideration of the negative connotation that
the article imparts to all XX;
that she had made a request to the publisher for the removal
of the images, receiving a response in which the
publisher reserved the right to proceed with the necessary
evaluations, but without subsequently informing
her of the outcome of these;
the violation of the principle of essentiality
of information as per Article 137 of the Code,
considering that the publication of the
images depicting her could not be deemed
essential for the narration of the news event;

that the collection of the images occurred in the absence of consent and in such a way as not to make the recording by the journalist evident and that the subsequent publication occurred without adopting appropriate measures to ensure her anonymity, considering also her minor age, thereby violating Article 7 of the Ethical Rules which also refers to the Treviso Charter containing provisions for the protection of minors' rights in the context of the exercise of the right to journalistic reporting;

HAVING REGARD to the note of April 14, 2022, by which the Authority requested the data controller to provide its observations regarding what was represented in the introductory act of the procedure and to communicate its possible intention to adhere to the requests of the complainant;

HAVING REGARD to the communication of May 4, 2022, by which the data controller represented:
that it had reported the slow flow of the XX
that took place in the province of XX, noting that the news had undeniable public relevance since the XX,
XX, had seen the participation of XX, moreover in disregard of the prescriptions imposed for the XX;
that the photographic documentation was functional to support the news, reporting the epilogue of the XX
and, in particular, the police operations aimed at identifying the XX;
the framing of the complainant was entirely incidental, as the aim was not to allow her identifiability, but to highlight the long XX, including her, along the public road, as well as the control activities carried out by the police;
the shots, contrary to what was claimed by the complainant, were taken at close range with respect to the interested subjects and the journalist made his presence evident;
the images of the complainant were removed, although without any acknowledgment of responsibility;

HAVING REGARD to the note of October 26, 2022, by which the interested party reiterated the violation of the principle of essentiality of information, noting the contradiction in the response provided by the data controller where it states, on one hand, that the framing of her would have been entirely incidental and, at the same time, that the recording would instead have occurred at close range such as to make the presence of the journalist and the role he played evident; the interested party took note of the removal of the images published in support of the article, but noted the continued

presence of a video on the YouTube platform containing several frames concerning her and of which she requested the removal;

HAVING REGARD to the note of January 10, 2023, by which the Authority sent the aforementioned memorandum to the data controller requesting any further observations which, however, were not received;

HAVING REGARD to the note of March 24, 2023, by which, pursuant to Article 166, paragraph 5, of the Code, the Authority communicated to More News cooperative society.

initiation of the procedure for the possible adoption of the measures referred to in Article 58, paragraph 2, of the Regulation and the alleged violations of the law, identified in this case as the violation of Articles 5, paragraph 1, letters a) and c), and 12, paragraph 4, of the Regulation and Article 137, paragraph 3, of the Code and Articles 6 and 7 of the Ethical Rules;

HAVING REGARD to the memorandum dated April 22, 2023, in which the data controller noted that: the procedure arises from the publication on Torinooggi.it of a news item of undeniable public interest as it pertains to "XX";

the journalist who authored the report arrived at the scene at the moment of the conclusion of the XX "and with his professional camera equipped with a conspicuous monopod, openly revealing himself and sharing with those present the public street of XX, created a video that highlighted their slow progress and the police checks";

some frames were extracted from the video, which were then published in reduced format at the end of the article, two of which referred to a woman, later revealed to be a seventeen-year-old, in the company of another person who appeared in the background of the public street and who, for this reason, could not be identified, also considering the reduced format of the images; in another frame, one of the police officers engaged in the verification activities appeared, and finally, in another frame, the police vehicle was prominently displayed;

in the video, which had a total duration of about 3'30", the interested party was framed for a few seconds, mostly in profile or from behind, and only at minutes 1'33" and 1'35" did the girl's face, never decontextualized from the XX, appear frontally, but always in the background;

the filming took place in a public context and the collection of the image of the interested party occurred entirely accidentally within the scope of the control operations that the police were conducting regarding XX and whose context was not suitable to make the journalist aware of her minor age (which was close to adulthood), nor could such a preventive assessment be made by the publisher;

the purpose of the report was not to make the XX identifiable and, in any case, the journalist acted in total transparency without concealing his identity in any way, contrary to what was claimed by the complainant, positioning himself in the location indicated by the officers so as not to obstruct the control operations;

that he had nonetheless proceeded, without acknowledging anything in this regard, to eliminate not only the images but also the entire video from his archive in order to prevent further dissemination; that, considering the innocent nature of the brief footage taken in a public context, the absence of previous incidents, and the proactive conduct, he requests the archiving of the procedure against him;

HAVING REGARD to the note dated May 24, 2023, in which the Authority requested further clarification from the data controller regarding the video whose online dissemination was complained of in the complaint and further reiterated during the procedure, as well as the subsequent note dated May 31, 2023, in which More News communicated that it had immediately removed, following the complaint, not only the photographs but the entire video related to the XX, which is no longer available at the link indicated by the complainant, as per the attached screenshot;

CONSIDERING that, unless the act constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or

documents is liable under Article 168 of the Code “Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor”;

NOTING that – as the Authority has repeatedly asserted – in order to balance the rights of the individual (particularly the right to privacy) with the freedom of expression, the regulations on the protection of personal data provide specific guarantees and precautions in the case of processing carried out for journalistic purposes, confirming their legality, even when they occur without the consent of the interested parties, provided that they take place in respect of the rights, fundamental freedoms, and dignity of the individuals to whom the processed data refer (cf. Articles 136 et seq. and Article 102, paragraph 2, letter a), of the Code) and as long as they are conducted in compliance with the principle of the essentiality of information regarding matters of public interest (Article 6 of the Ethical Rules);

NOTING, with regard to the events described in the complaint, that:

the facts narrated in the contested article present undeniable public relevance, particularly considering the historical period in which the XX occurred, namely in XX;

the footage taken by the journalist in this circumstance was conducted, by the publisher's own admission, at close range, a method that is likely to facilitate, in the absence of specific precautions, the identification of the individuals present;

although consent from the portrayed individual is generally not required for the processing of personal data for journalistic purposes, it is nevertheless necessary that such processing operates within the framework of the principle of the essentiality of information, as well as, in cases where the news involves minors, the specific rules protecting them (specifically, Article 7 of the Ethical Rules and the Treviso Charter), especially where the context of the narrative is likely to produce, as in this case, a negative reflection on the representation of the same, thus affecting their development; in the case at hand, even assuming that the minor age of the individuals depicted was not immediately perceivable by the journalist, the publisher was nevertheless informed of this circumstance at the moment it received the specific removal request from the parents of the minor, prior to the submission of the complaint; despite the intervening inquiry, the data controller provided a generic response that was not subsequently followed by any supplementary communication to the interested party, nor by the adoption of any measures aimed at excluding the direct recognizability of the same both in the images published alongside the article indicated in the complaint and in the video, undoubtedly more complete, attributable to the same publisher; the direct identifiability of the minor, also considering the negative connotation attributed to the facts as can be inferred from the title used to convey the news, was deemed a circumstance capable of causing harm to the same, without this being justified by specific public interest reasons that would deem the general principle of anonymity for minors (cf. art. 7 of the Ethical Guidelines regarding journalistic purposes) surmountable in the specific case;

CONSIDERING that the conduct carried out by the data controller is suitable to constitute a violation of Articles 5, paragraph 1, letters a) and c), 137, paragraph 3, of the Code, 6 and 7 of the Ethical Guidelines, as well as Article 12, paragraph 4, of the Regulation, with specific reference to the generic nature of the response provided following the preventive inquiry;

NOTING the measures adopted during the proceedings by the publisher, which has removed the contested images and that, therefore, regarding this aspect, there are no grounds for the adoption of measures in this regard by the Authority;

CONSIDERING it necessary to impose on More News cooperative society a r.l., pursuant to Article 58, paragraph 2, letter f), of the Regulation, the measure of prohibition of further processing, including online, including the historical archive, of the identifying data of the minor in whose interest this procedure has been activated, except for mere retention of the same for possible use in judicial proceedings;

REMEMBERING that, in case of non-compliance with the prohibition measure imposed by the Guarantor, the criminal sanction referred to in Article 170 of the Code may apply, in addition to the administrative sanction referred to in Article 83, paragraph 5, letter e), of the Regulation;

CONSIDERING, however, that it is necessary to adopt, regarding the established violation, an injunction order pursuant to Article 166, paragraph 7 of the Code and 18 of Law No. 689/1981 for the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5 of the Regulation;

NOTING that, for the determination of the amount of the pecuniary sanction, it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation and that, in this specific case, the following aggravating circumstances must be considered:

- a) the seriousness of the violation (Article 83, paragraph 2, of the Regulation), taking into account the harm suffered by the interested party – a minor at the time of publication – due to the publication of the full video of XX both in the context of the article and on a YouTube channel attributable to the same publisher;
- b) the failure to adopt measures aimed at mitigating the harm suffered by the minor following the receipt of the preventive inquiry sent by the complainant – to which a generic response was provided, disregarding the indications of Article 12, paragraph 4, of the Regulation – at a time when the data controller had certain knowledge of the minor's age;

and, as mitigating factors:

- c) the adoption of measures suitable to eliminate the consequences of the violation (Article 83, paragraph 2, letter c), of the Regulation), as the data controller removed, during the proceedings, the images contained in the contested article and the video was also removed;
- d) the cooperation shown during the proceedings (Article 83, paragraph 2, letter f), of the Regulation);
- e) the absence of previous violations committed regarding the processing of personal data, as this is an isolated case (Article 83, paragraph 2, letter e), of the Regulation);

CONSIDERING that, based on the overall elements indicated above and the principles of effectiveness, proportionality, and deterrence indicated in Article 83, paragraph 1 of the Regulation, the administrative sanction of payment of an amount of €5,000.00 (five thousand) should be applied to the same;

CONSIDERING that the conditions exist to proceed with the annotation in the internal register of the Authority referred to in Article 57, paragraph 1, letter u), of the Regulation, regarding the measures adopted in this specific case against More News cooperative society a r.l. in accordance with Article 58, paragraph 2, of the same Regulation;

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Attorney Guido Scorza;

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR pursuant to Article 57, paragraph 1 letter f), of the Regulation:

- a) acknowledges the measures adopted by the data controller during the proceedings in order to remove the contested images from the interested party;
- b) pursuant to Article 58, paragraph 2, letter f) of the Regulation, imposes a ban on further processing of the above-mentioned data with regard to their further dissemination, including online, as well as the historical archive, except for mere preservation for potential use in judicial proceedings;

ORDERS

pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, More News cooperative society, with registered office at Cuneo, Corso Nizza 36 (ZIP 12100), Tax Code 03401570043, represented by the pro tempore representative, to pay the sum of €5,000.00 (five thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning, noting that the offender, pursuant to Article 166, paragraph 8 of the Code, has the option to settle the dispute by payment, within thirty days, of an amount equal to half of the imposed sanction;

ORDERS

More News cooperative society, in the event of failure to settle the dispute pursuant to the aforementioned Article 166, paragraph 8, of the Code, to pay the sum of €5,000 (five thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981.

PROVIDES

pursuant to Article 17 of the Garante Regulation No. 1/2019, for the annotation in the internal register of the Authority referred to in Article 57, paragraph 1, letter u), of the Regulation, of the measures adopted against More News cooperative society, in accordance with Article 58, paragraph 2, of the same Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted, alternatively, to the court of the place where the data controller resides or has its registered office or to the court of the place of residence of the interested party within thirty days from the date of communication of this provision or within sixty days if the applicant resides abroad.

Rome, June 22, 2023

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Scorza

THE DEPUTY SECRETARY GENERAL

Filippi